

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Trevor Hackett	Team: Squad #08	CCRB Case #: 202308443	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 09/05/2023 11:04 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/5/2025	Precinct: 84		
Date/Time CV Reported Wed, 09/06/2023 11:10 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 09/06/2023 11:10 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Dominick Bilello	27135	968967	084 PCT
2. PO Eric Cruz	10298	974037	084 PCT
3. SGT James Dagostino	02810	954689	084 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Dominick Bilello	Abuse: Police Officer Dominick Bilello entered § 87(2)(b) in Brooklyn.	A . Substantiated
B . PO Dominick Bilello	Abuse: Police Officer Dominick Bilello threatened to remove § 87(2)(b) to the hospital.	B . Substantiated
C . PO Dominick Bilello	Discourtesy: Police Officer Dominick Bilello spoke discourteously to § 87(2)(b)	C . Substantiated
D . SGT James Dagostino	Abuse: Sergeant James Dagostino entered entered § 87(2)(b) in Brooklyn.	D . Within NYPD Guidelines
E . PO Dominick Bilello	Abuse: Police Officer Dominick Bilello forcibly removed § 87(2)(b) to the hospital.	E . Within NYPD Guidelines
F . PO Eric Cruz	Abuse: Police Officer Eric Cruz forcibly removed § 87(2)(b) to the hospital.	F . Within NYPD Guidelines

Case Summary

On September 6, 2023, § 87(2)(b) filed this complaint via the CCRB website.

On September 5, 2023, at approximately 11:04 PM, § 87(2)(b) got into a verbal dispute with a security guard, § 87(2)(b) at his building, located at § 87(2)(b) in Brooklyn. Police Officers Dominick Bilello and Eric Cruz of the 84th Precinct responded to the location. PO Bilello entered § 87(2)(b) apartment (**Allegation A: Abuse of Authority, Substantiated**). PO Bilello threatened to remove § 87(2)(b) to the hospital and made a discourteous remark to him (**Allegation B: Abuse of Authority, Substantiated, Allegation C: Discourtesy, Substantiated**). Sergeant James Dagostino of the 84th Precinct arrived at the location and instructed PO Cruz to enter § 87(2)(b) apartment (**Allegation D: Abuse of Authority, Within NYPD Guidelines**). PO Bilello and PO Cruz then removed § 87(2)(b) to the hospital (**Allegations E and F: Abuse of Authority, Within NYPD Guidelines**). § 87(2)(b) was not summonsed or arrested as a result of this incident.

Body Worn Camera footage was obtained for PO Cruz, PO Bilello, PO Stanley Grant, and Sergeant James Dagostino. The footage is located in IAs #70, 71, 72, and 32 (**BR 01-04**). The footage is summarized IA #37 (**BR 05**). § 87(2)(b) recorded the incident on his cell phone. The footage is located in IA #17 (**BR 06**).

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Dominick Bilello entered § 87(2)(b) in Brooklyn.

Allegation B – Abuse of Authority: Police Officer Dominick Bilello threatened to remove § 87(2)(b) to the hospital.

Allegation D – Abuse of Authority: Sergeant James Dagostino entered § 87(2)(b) in Brooklyn.

Event documents show that the security guard, § 87(2)(b) called 911 and reported that one of the residents in her building, identified by the investigation as § 87(2)(b) was threatening her. § 87(2)(b) reported that there were no weapons involved (**BR 07**).

BWC from PO Bilello shows, at 01:30, visible on the media player at the bottom of the screen, PO Bilello and PO Cruz enter the building and speak with the security guard, § 87(2)(b) at the front desk. § 87(2)(b) explains that § 87(2)(b) who resides in § 87(2)(b) had become upset because someone had left feces in the shared bathroom. § 87(2)(b) told § 87(2)(b) that he would have to tell the management about it in the morning. § 87(2)(b) became angry that § 87(2)(b) would not resolve the issue, and began threatening her, stating that he was going to “get her” and another security guard once they leave work. She states that he also threatened another security guard by saying that he would come into the security room and “get him.” § 87(2)(b) mentions that this is not the first time that this has happened, and she does not want it to happen again. PO Bilello tells her that there is nothing the officers can do aside from talking to § 87(2)(b). At 02:53, PO Bilello knocks on § 87(2)(b) front door and identifies himself. At 03:40, § 87(2)(b) opens his door. § 87(2)(b) is smoking a cigarette and recording the officers on his cell phone and requests PO Bilello's name. PO Bilello steps through the doorway into § 87(2)(b) room and provides his name. § 87(2)(b) tells PO Bilello that he cannot be in his room and to get out. PO Bilello responds, “I can’t be in your room. You can’t be bothering security.” § 87(2)(b) states that he can as it is his first amendment right. The two argue about whether § 87(2)(b) is allowed to bother the security guard. At 04:10, § 87(2)(b) tells PO Bilello again to get out of his room. PO Bilello responds in an antagonistic tone, “Why don’t you make me get out of your room,” then asks, “Why are you shaking. Are you scared?” § 87(2)(b) hand, which is still holding his cell phone, is trembling slightly. Prior to this point, § 87(2)(b) has told PO Bilello multiple times to “Get out of [his] fucking

room,” but has not shouted at the officers. After this point, § 87(2)(b) begins shouting at PO Bilello to get out of his room and to tell him what crime he has committed.

At 05:40, as § 87(2)(b) continues shouting at the officers, PO Bilello states that § 87(2)(b) was harassing the security guard, which is a crime. At 06:28, PO Bilello tells § 87(2)(b) “In about two seconds, I’m going to send you to the hospital because you are screaming and harassing security.” At 06:54, PO Bilello requests EMS over his radio in regard to an EDP. At 13:35, PO Grant and Sgt. Dagostino arrive on scene. PO Bilello tells Sgt. Dagostino that § 87(2)(b) “is an EDP just like everybody here,” who was bothering the security staff so he “came over here to yell at him.” He states that he called EMS because § 87(2)(b) was yelling at him to get out of his room, his pupils were dilated, he was smoking cigarettes in his room, and his hands were shaking. PO Bilello states that § 87(2)(b) was cursing, screaming, and “acting like a maniac,” so he called EMS to evaluate him because he is not behaving normally (BR 01).

BWC footage from PO Cruz, between 03:00 and 03:54, captures PO Bilello’s entry of § 87(2)(b) room from a separate angle. Prior to the entry, PO Bilello places his forearm on the wall and outside of § 87(2)(b) doorframe. At no point is PO Bilello’s hand or arm in a position where § 87(2)(b) could cause injury by closing the door (BR 02).

BWC from Sgt. Dagostino shows, at 03:00, after he arrives on scene, he speaks with PO Cruz outside § 87(2)(b) room. PO Cruz explains the situation, that § 87(2)(b) was allegedly cursing at and threatening the security guard regarding the cleanliness of the communal bathroom. PO Cruz states that the security guard informed them that this is an ongoing issue. PO Cruz states that when § 87(2)(b) opened the door for the officers, he was recording on his cell phone, smoking a cigarette and his hands were shaking. At 06:50, Sgt. Dagostino instructs PO Cruz to switch places with PO Bilello so that he can speak with him. As instructed, PO Cruz then steps into § 87(2)(b) doorway and holds the door open (BR 03).

§ 87(2)(b) statement was somewhat consistent with the BWC footage. He did not allege that PO Bilello threatened to remove him to the hospital. This allegation was instead captured on BWC. § 87(2)(b) stated that on September 5, 2023, at approximately 11:04 PM, he got into a verbal dispute with the facility’s security guard regarding the cleanliness of his shared bathroom. The location is a supportive housing facility operated by § 87(2)(b). Shortly thereafter, PO Bilello and PO Cruz arrived at his apartment. § 87(2)(b) opened his door to speak with the officers, and PO Bilello “jumped” into his room. While in § 87(2)(b) room, PO Bilello said to § 87(2)(b) “Why are you scared? Why are you scared?” § 87(2)(b) believed that PO Bilello was trying to antagonize him. At some point during the incident, PO Bilello told § 87(2)(b) that he entered the room because he thought he saw a sink, which led him to believe he may have a kitchen, which led him to believe that § 87(2)(b) may have access to a knife. § 87(2)(b) stated that while his room does have a sink it is not visible while standing outside the front door of his room. § 87(2)(b) believed that PO Bilello was trying to create a justification for entering his room. § 87(2)(b) could not recall any other conversation he had with the officers. § 87(2)(b) denied that he made any threats to harm himself or anyone else during the incident and acknowledged that he refused to answer EMS’s questions when they arrived. § 87(2)(b) stated that PO Cruz later entered his room with PO Bilello to handcuff him and escort him to the hospital (BR 08).

PO Bilello’s statement was somewhat consistent with the BWC footage. PO Bilello was not familiar with § 87(2)(b) nor § 87(2)(b) prior to this incident but stated that he was familiar with the location as he had been present for between five and 15 different, unrelated EDP removals. PO Bilello was unsure of what kind of facility the incident took place in. Prior to speaking with § 87(2)(b) PO Bilello thought, based on his previous experiences at the location, that he might be an

emotionally disturbed person who would require a medical evaluation. In addition, PO Bilello thought that § 87(2)(b) may have been an emotionally disturbed person based on the allegations that he was threatening a security guard over an unflushed toilet, which did not seem like the behavior of a normal person. PO Bilello knocked on § 87(2)(b) door. § 87(2)(b) opened the door and immediately began recording the officers on his cellphone. PO Bilello observed that § 87(2)(b) was “twitching around” and smoking a cigarette, which led him to believe that § 87(2)(b) may be a “full blown EDP.” PO Bilello asked § 87(2)(b) to explain the situation to the officers. § 87(2)(b) immediately asked for PO Bilello’s name and shield number. PO Bilello then “took that opportunity,” to cross the threshold of § 87(2)(b) doorway to place his foot against the door to prevent § 87(2)(b) from shutting it. PO Bilello did not want it to become a barricaded EDP situation which would require ESU to knock the door down. PO Bilello added that if § 87(2)(b) locked himself inside his room and killed himself, then the officers would be responsible. When asked whether he made any observation that § 87(2)(b) was a suicide risk, PO Bilello stated he did not.

PO Bilello stated that prior to the entry, his hand was placed on the doorway in such a way that his hand would have been injured had § 87(2)(b) decided to shut the door. PO Bilello stated that to prevent himself and PO Cruz from being injured, he decided to put his foot in the doorway to prevent it from closing. However, § 87(2)(b) did not give PO Bilello any indication that he was going to shut the door. When asked whether there was any other reason for entering § 87(2)(b) room, PO Bilello stated “not really,” then added that he was unable to see fully into § 87(2)(b) room and did not know whether § 87(2)(b) had a knife on his sink, or a gun duct taped to the wall. PO Bilello acknowledged that this was more of a general concern when speaking to anyone inside their residence and that he did not make any specific observation during the incident that § 87(2)(b) had a knife or any other kind of weapon prior to entering (BR 09).

PO Cruz’s statement was generally consistent with the BWC. PO Cruz stated that he believed PO Bilello entered § 87(2)(b) room to ensure there were no weapons inside, though he and PO Bilello did not discuss this before the entry. PO Cruz did not make any observation that § 87(2)(b) was armed or that there were weapons inside his room. § 87(2)(b) did not make any statements which led PO Cruz to believe he was a danger to himself. Aside from the alleged threats § 87(2)(b) made to the security guard, he did not threaten to harm anyone else during the incident. PO Cruz acknowledged entering § 87(2)(b) room to hold the door open and stated that he did so at the instruction of Sgt. Dagostino (BR 10).

§ 87(2)(g)

As per *People v. Doll*, 21 N.Y.3d 665 (2013), officers may only conduct warrantless entries into homes under the following circumstances: 1) there are reasonable grounds to believe an emergency is at hand and an immediate need to protect life, 2) the search must not be primarily motivated by intent to arrest or to seize evidence, and 3) there must be some reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched (BR 11).

As per *People v. Young*, 277 A.D.2d 176 (1st Dept. 2000), “under the ‘fellow officer rule,’ an arresting officer can make a lawful arrest and is deemed to have acted with probable cause as long as that officer relied upon information provided by a fellow officer who possessed information sufficient to constitute probable cause” (BR 19).

NYPD Patrol Guide Procedure 221-13 defines an emotionally disturbed person as someone who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to themselves or others. When

a member of service believes that a person who appears to be mentally ill or emotionally disturbed is conducting themselves in a manner that is likely to result in serious injury to themselves or others, the member of service must take that person into protective custody (**BR 12**).

BWC footage shows that nine seconds after § 87(2)(b) opens his front door, PO Bilello steps inside his room. The extent of the conversation prior to the entry is limited to § 87(2)(b) asking for the officers' names and shield numbers after PO Bilello asks him to explain what happened. § 87(2)(g)

§ 87(2)(g) BWC footage shows that PO Bilello's hand and arm were not positioned in the way he described § 87(2)(g)

§ 87(2)(g) BWC footage shows that while speaking to Sgt. Dagostino, § 87(2)(g)

§ 87(2)(g) PO Bilello does not mention any emergency circumstances prior to the entry.

§ 87(2)(g)

§ 87(2)(g) BWC footage shows that when officers arrived on scene, § 87(2)(b) was alone in his room

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation A** be closed as **Substantiated**.

PO Bilello acknowledged that he threatened to remove § 87(2)(b) to the hospital. PO Bilello's statement was generally consistent with the BWC footage regarding his reasoning for doing so, specifically that § 87(2)(b) was smoking in his room, that his pupils were dilated, that he was shaking, and that he was screaming at the officers. § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation B** be closed as **Substantiated**.

§ 87(2)(g)

§ 87(2)(g) BWC footage shows that when Sgt. Dagostino arrives on scene, EMS has already been called and PO Bilello is still

standing inside § 87(2)(b) room. He briefly speaks to PO Cruz, who explains the situation while § 87(2)(b) continues to shout and curse at the officers. § 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **Within NYPD Guidelines**.

Allegation E – Abuse of Authority: Police Officer Dominick Bilello forcibly removed § 87(2)(b) to the hospital.

Allegation F – Abuse of Authority: Police Officer Eric Cruz forcibly removed § 87(2)(b) to the hospital.

BWC from PO Bilello shows, at 16:40, PO Bilello speaks with an FDNY EMT and says that he wants them to check § 87(2)(b) to make sure he is ok. The EMT stands at § 87(2)(b) front door and attempts to ask him questions about what is going on. § 87(2)(b) refuses to answer the questions and is argumentative. The EMT tells § 87(2)(b) that he does not necessarily need to go to the hospital, and if he answers their questions, officers and EMS can leave. At 21:20, the EMT tells § 87(2)(b) that if he continues to be noncompliant with their questions, he may have to decide that § 87(2)(b) will come with them for an evaluation. At 22:40, the EMT turns to PO Bilello, who says, “It’s up to you guys.” Another EMT returns from the front desk and tells the other that the security guard alleged that § 87(2)(b) verbally threatened to assault her. The EMT states that if § 87(2)(b) is refusing to answer questions, they have to assume he is mentally unstable and will need to remove him. At 23:30, the EMT asks § 87(2)(b) several times if he has any desire to hurt himself or anyone else and each time, § 87(2)(b) refuses to answer the question. The EMT then says, “Alright, then we have to assume the answer is yes.” The EMT then moves back from the doorway, turns to PO Bilello and says, “Alright.” PO Bilello then enters § 87(2)(b) room and tells him that he’s going to the hospital. At 25:00, PO Bilello handcuffs § 87(2)(b) escorts him from the building, and puts him into an ambulance. At no point does any officer or § 87(2)(b) mention a knife being in § 87(2)(b) room (BR 01).

§ 87(2)(b) statement was generally consistent with the BWC footage. He stated that he refused to answer EMS’ questions when they arrived (BR 08).

Statements from PO Bilello and PO Cruz were consistent with the BWC footage. Both officers stated that § 87(2)(b) refused to speak with EMS and that ultimately, it was EMS’ decision to remove § 87(2)(b) to the hospital (BR 08, 09).

NYPD Patrol Guide, Procedure 216-01 requires officers to cooperate with “ambulance/hospital personnel in every reasonable manner” (BR 13).

BWC footage shows that § 87(2)(b) tells officers that § 87(2)(b) was harassing her and another security guard and allegedly stated that he would “get” them. EMS tells § 87(2)(b) that he does not necessarily need to go to the hospital, but that he needs to speak with them about what happened, which he refuses to do. An EMT asks § 87(2)(b) several times if he is a danger to himself or anyone else, but § 87(2)(b) refuses to answer. § 87(2)(g)

It is therefore recommended that **Allegation E and F** be closed as **Within NYPD Guidelines**.

114

it is recommended that

0

mediate this complaint.

- 10

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 8

Investigator:	<u>Trevor Hackett</u>	<u>Inv. Trevor Hackett</u>	<u>12/18/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Ethan De Angelo</u>	<u>IM Ethan De Angelo</u>	<u>12/18/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date